KADHIS COURT ACT, NO. 9 of 2017

KADHIS COURT RULES OF PROCEDURE, 2021

(Made under section 7)

ARRANGEMENT OF RULES

RULES: **TITLE:**

PART ONE
PRELIMINARY PROVISIONS

1. Short title and Commencement.
2. Application.
3. Interpretation.
4. Non-compliance.

PART TWO
INSTITUTION OF SUITS

5. Institution of a suit.
6. Contents of the plaint.
7. Written Statement of Defence.
8. Contents of Written Statement of Defence.
9. Failure to file Written Statement of Defence.
10. Counter claim.
11. Defence to counter claim.
12. Oral claim or defence.

PART THREE
PARTIES TO THE SUIT

13. Joinder of parties.
14. Changes of parties.
15. Mis-joinder or non-joinder of parties.
16. Amendment and services of documents.

PART FOUR
SERVICE OF SUMMONS WITHIN THE JURISDICTION OF COURT

17. Summons.
18. Mode of service of summons.
19. Procedure when defendant refuses to accept services or cannot be found.
20. Examination of serving officer.
21. Substituted services.
22. Proof of Service.

PART FIVE
SERVICE OF SUMMONS OUT OF THE JURISDICTION OF COURT

23. When service of summons is allowed.
24. Manners of service out of jurisdiction of Zanzibar.

PART SIX
MEDIATORS AND ULAMAAS

25. Parties be called for mediation.
26. Appointment of Mediators.
27. Appointment of Ulamaas.
28. Allowance and other benefits for Ulamaas and Mediators.

PART SEVEN
PLEADING GENERALLY

29. Pleading.
30. Particulars to be given in pleading where necessary.
31. Preliminary objections.
32. New pleading or facts.
33. Pleading to be signed.
34. Verification of pleading.
35. Striking out pleading.
36. Amendment of summons or pleading.
37. Appointment of recognised agent, vakil and advocate.
38. Death.

PART EIGHT
APPEARANCE OF PARTIES AND CONSEQUENCE OF NON APPEARANCE

39. Parties to appear on day fixed in summons.
40. Where neither party appears.
41. Procedure when only plaintiff appears.
42. Procedure where defendant appears on day of adjourned hearing.
43. Procedure where defendant only appears.
44. Setting aside decree ex parte against defendant.

PART NINE
FRAMING OF ISSUES, HEARING OF THE SUIT AND EXAMINATION OF WITNESS

45. Framing of issues.
46. Court may examine any person or document prior to framing issues.
47. Right to begin.
48. Order of speech.
49. Suit to be heard in open Court.
50. How evidence shall be taken.
51. Remarks on demeanor of witness.
52. Taking evidence of witness before trial date.
53. Court may recall and examine witness.
54. Power to deal with evidence recorded by another Kadhi.
55. Powers of court to inspect.

PART TEN
AFFIDAVITS

56. Matters to which Affidavits shall be confined.
57. Power to order any point to be proved by affidavit.
58. Power to order attendance of a deponent for cross examination.

PART ELEVEN
SUIT BY A PERSON WITH LEGAL IMPAIRMENT

59. Person with legal impairment.
60. Bindingness of guardian’s consent.
61. General provisions as to legal impairment.

62. Irregular proceedings.
63. Removal of Guardian ad litem.
64. Minor plaintiff attaining majority or a person with mental incapacity recovers.
65. Minor defendant attaining majority or a person with mental disability recover.
66. Application to file a suit or defend as a poor person.
67. A poor person may discontinue, etc., with the leave of the Court.
68. Costs.

PART TWELVE
DISCOVERY OF DOCUMENTS

69. Discovery of documents.
70. Presentation of a copy of any document
71. Non-compliance with order for discovery.
72. Privileged communications and documents.
73. Appeal against the order.

PART THIRTEEN
TRANSFER OF PROCEEDINGS

74. Transfer of proceedings to another Court.
75. Procedure on transfer.

PART FOURTEEN
SETTLEMENT, WITHDRAWAL AND DISCONTINUANCE OF SUITS

76. Settlement of action.
77. Withdrawal of claim.
78. Effect of withdrawal on future proceedings.
79. Stay of proceeding.
80. Conciliation.

PART FIFTEEN
INTERLOCUTORY PROCEEDINGS AND INTERIM ORDER

81. Form of application.
82. Notice of application to be filed.

83. Service of application.
84. Application be supported by affidavit.
85. Copies of the documents.
86. Adjournment of application.
87. Non-appearance of parties.
88. Order made ex parte may be set aside.
89. Application in a proceeding.
90. Power of Court to grant interim order.
91. Detention,preservation, of a property in dispute.
92. Injunction.
93. An interim order as to taking care of a child.
94. Interim order as to maintenance.
95. Power to order evidence to be taken.
96. Sale of perishable property.
97. Order for early trial.
98. Power of Court to call any party.
99. Where trial not concluded.
100. Adjournment of trial.
101. Procedure in trying offence of contempt of Court.

PART SIXTEEN
DEATH OF PARTIES AND ABATEMENT OF SUIT

102. Abatement by party's death.
103. Effect of abatement.
104. Abatement by reason of death after hearing.

PART SEVENTEEN
JUDGMENT, DECREE AND ORDERS

105. Judgment and its contents.
106. Consent judgment.
107. Instalments when due.
108. Order for instalments.
109. Judgment or order requiring act to be done.
110. Judgment on movable property.
111. Contents of Decree.

PART EIGHTEEN
APPEAL AND REVISION

112. Limitation of appeal and revision.
113. Application for review.
114. Memorandum of appeal or revision.
115. Stay of execution pending appeal.
116. Execution of judgment on appeal.
117. Calling a file for records.

PART NINETEEN
ENFORCEMENT AND EXECUTION

118. Duty to comply with order and judgement.
119. Enforcement of judgment.
120. Procedure for attachment of immovable property.
121. Procedure for excution of movable property.
122. Procedure of enforcement of judgment to do an act or abstain from doing it.
123. Power of Court to fix time.
124. Execution by or against person not being a part.

PART TWENTY
EXECUTION OF DECREES AND ORDERS BY ATTACHMENT

125. Modes of paying money under decree.
126. Immovable property situate in more than one jurisdiction.
127. Procedure where court desires that its own decree to be executed by another court.
128. Application for execution.
129. Application to contain description of the property.
130. Stay of execution.

PART TWENTY ONE
MISCELLANEOUS PROVISIONS

131. Power of the Court to make order to prevent injustice.
132. In case of lacunae.
133. Amendment of rules.

SCHEDULE

KADHIS COURT ACT, NO. 9 of 2017

KADHIS COURT RULES OF PROCEDURE, 2021

(Made under section 7)

IN EXERCISE of the powers conferred upon me under section 7 of the Kadhis' Court Act, No. 9 of 2017, and after consultation with the Chief Kadhi, **I, OMAR OTHMAN MAKUNGU,** Chief Justice of Zanzibar do hereby make the following Rules: **L. N 185 of 2021.**

PART ONE
PRELIMINARY PROVISIONS

1. These Rules may be cited as the Kadhis Court Rules of Procedure of 2021 and shall come into operation upon being signed by the Chief Justice and published in the Official Gazette. Short title and Commencement.

2. These Rules shall apply to all proceedings in Kadhis Court. Application.

3. In these Rules, unless the context requires otherwise: Interpretation.

"Act" means Kadhis Court Act, No. 9 of 2017;

"Child" means a person below the age of 18 years;

"Court" means Kadhis' Court as defined under the provisions of the Act;

"day of appearance" means the day appointed in any summons or other proceedings for the appearance of the parties or any other day for hearing of the proceedings;

"defendant" includes a respondent;

"form" means a form set out in the Schedule, and a form referred to by a number means the form so numbered in that Schedule;

"Gurdian ad litem" means a person who is appointed to look after a minor's interest in a suit;

"judgment creditor" means a person having the right to enforce judgment for payment of money either by instalment or otherwise;

"judgment debtor" means a person liable under any judgment for payment of money or any other order;

"Kadhi" means the Chief Kadhi, Deputy Chief Kadhi,Appellate Kadhi or District Kadhi as appointed under the provisions of the Act;

"notice" includes summons to attend before the Court;

"person who lacks locus standi" includes a minor, a person of with intellectual impairment, a condition or any kind of disability to which a person is legally restricted to stand on his own behalf;

"plaintiff" includes an applicant;

"Pleading" means plaint or written statement of defence; and

"Registrar" means the Registrar of Kadhis' Court appointed under the provisions of the Act and include Kadhi or any person appointed to perform duties of the Registrar;

Non-compliance.

4.-(1) Non-compliance with any provisions of these Rules shall not render any proceeding void unless the Court deems that it will result injustice.

(2) The Court may, on its own motion or on the application of any party, set aside any proceeding wholly or in part as irregular, or order such amendments to be made on such terms as it thinks just.

PART TWO
INSTITUTION OF SUITS

Institution of a suit.

5.-(1) Every suit in the District Kadhis Court shall be instituted by the presentation of plaint as prescribed in the Schedule to these Rules under KC. Form I.

(2) Every suit shall as far as practicable be framed for the purpose of affording grounds for final decision upon the subject in dispute and prevent further litigation concerning them.

(3) Every suit shall include the whole of the claim which the plaintiff is entitled to make in respect of the cause of action; but a plaintiff may relinquish any portion of his claim in order to bring the suit within the jurisdiction of any court.

(4) Where a plaintiff omits to sue, or intentionally relinquishes, any portion of his claim, he shall not afterwards sue in respect of that portion so omitted or relinquished.

(5) A person entitled to more than one relief in respect of the same cause of action may claim for all or any of such reliefs; but if he omits to claim any relief, except with the leave of the court, he shall not afterwards claim for any relief so omitted.

Contents of the plaint.

6.-(1) Every plaint shall contain the following:

(a) title of the Court;

(b) the case number assigned to it;

(c) the date of filing;

(d) the names and address of the plaintiff and or his counsel, and the name and address of the defendant, phone number and e-mail address, if any;

(e) a concise statement, in numbered paragraphs, of the fact relied on by the plaintiff and indicating his cause of action, including particulars of any special capacity in which the plaintiff sues, if any;

(f) sufficient particulars of the claim;

(g) a statement of the relief claimed; and

(h) signature of the plaintiff (s), advocate, vakil or his authorized representative agent.

(2) Where more than one cause of action is relied on, the grounds of each and the relief claimed thereon shall be stated separately.

(3) Where a Plaintiff is unable to write, the paralegal assigned for that purpose may record his statement and prepare a plaint for him.

Written Statement of Defence.

7.-(1) A defendant who disputes the whole or part of any claim in the action may:

(a) within seven days before the day of appearance, serve on the plaintiff his written statement of defence; or

(b) appear on the day of appearance and dispute the plaintiff's claim.

(2) Where a defendant appears in Court and disputes the plaintiff's claim, the Court may order him to file Written Statement of Defence within such time as it may direct.

(3) A Written statement of defence shall be in a form as prescribed in the Schedule to these Rules under KC. Form II and be signed by the defendant, advocate, vakil or his authorized agent.

Content of Written Statement of Defence.

8.-(1) Every Written Statement of Defence shall contain the following statements that:

(a) either admit or deny every material allegation of the fact in the statement of claim;

(b) state concisely any new facts on which the defendant relies by way of defense; and

(c) raise concisely and without argument any necessary matters of law.

(2) A denial under paragraph (a) of sub-rule (1) shall not be evasive but shall answer the point of substance.

Failure to file Written Statement of Defence.

9. Where the defendant fails to present a Written Statement of Defence within the time fixed by the Court and the Court is satisfied that there is no reasonable ground, it shall proceed to receive the evidence ex-parte and render judgment.

10.-(1) Every counterclaim shall contain the like matters and particulars as a statement of claim and shall be signed by the defendant, advocate, vakil or his authorized agent. Counter claim.

(2) A counterclaim shall not be made against any person not then a party to the action, but if a cross action is brought, an order for consolidation may be made by the Court.

11. Where any defendant raises a counterclaim, the plaintiff shall, respond to the counterclaim, file and cause to be served on the defendant a defense to the counterclaim within such time as the Court may direct. Defence to counter claim.

12.-(1) Notwithstanding anything in these Rules, the Court may, in its discretion, allow any claim or defense to be made orally provided that, in such a case the Court shall record the particulars of the claim or defense having regard to the requirements of these Rules relating to summons or applications, as the case may be. Oral claim or defence.

(2) The Court shall serve a copy of the record made under sub-rule (1) on the party for whom the particulars of the claim or defense, as the case may be, is recorded.

(3) On receipt of the record referred to in sub rule (2) of this rule, the party on whom it is served shall:

(a) certify the particulars contained therein by placing his signature or affixing his right thumbprint on the record;

(b) prepare sufficient copies of the record so that one copy can be served on each of the other parties to the proceedings; and

(c) serve one copy of the record to every such party at least seven days before the day of appearance.

PART THREE
PARTIES TO THE SUIT

Joinder of parties.

13.-(1) Two or more persons may be joined together in one action as plaintiffs or as defendants or where:

(a) separate actions are brought by or against each of them, as the case may be, and same common question of law or fact arises in all the actions; and

(b) all rights to relief claimed in the action, whether they are joint, several or in the alternative, are in respect of or arise out of the same transaction or series of transactions.

(2) Notwithstanding sub rule (1) of this rule, where it appears to the Court that any joinder may embarrass any defendant or delay the trial or be otherwise inconvenient, the Court may, on its own motion or on the application of the defendant, order separate trials or make such other orders as it thinks fit.

(3) Judgment may be given without any amendment to any plaintiff for the relief to which he is entitled or against such one or more of the defendants as may be found liable according to their respective liabilities.

Changes of parties.

14.-(1) Subject to sub rule (2) of this rule, the Court may, on its own motion or on the application of any parties at any stage of the proceedings, strike out, substitute or add any party in such manner and upon such terms as may be just and proper.

(2) A person shall not be made plaintiff without his consent or, if the person lacks capacity to stand, the consent of his representatives which shall be signified in writing or in such other manner as may be authorized.

Mis-joinder or non-joinder of parties.

15.-(1) Subject to sub rule (2) of this rule, at any stage of the proceedings in any cause or matter the Court may, as it thinks just and either of its own motion or on application:

(a) order any party who has been improperly or unnecessarily made a party or who has for any reason ceased to be a proper or necessary party, to cease to be a party; or

(b) order any party who ought to have been joined as a party or whose presence before the Court is necessary to ensure that all matters in dispute in the cause or matter may be effectually and completely determined and adjudicated upon to be added as a party.

(2) A person shall not be added as a plaintiff without his consent which shall be signified in writing or in such other manner as may be authorized.

Amendment and services of documents.

16.-(1) Where any change of parties occurs during the pendency of any proceedings:

(a) the title of the proceedings shall be amended accordingly; and

(b) any person added or substituted as a defendant shall be served with the documents of the proceedings unless he consents to waive the service.

(2) The proceedings against the person referred to in paragraph (b) of sub rule (1) of this rule shall be deemed to have begun upon the date of such service or waiver, as the case may be.

PART FOUR
SERVICE OF SUMMONS WITHIN THE JURISDICTION OF COURT

Summons.

17.-(1) Where a suit has been duly instituted a summons may be issued to a defendant in a form prescribed in the Schedule of these Rules under KC. Form III and served in the manner prescribed to appear and answer the claim.

(2) Summons against a single defendant shall be presented for filing in triplicate and an additional copy shall be presented for every additional defendant.

(3) Summons shall not be issued when the defendant has appeared at the presentation of the plaint and admitted the plaintiff's claim.

(4) A defendant to whom a summons has been issued under sub rule (3) may appear:

(a) in person;

(b) by an advocate, vakil or authorized agent duly instructed and able to answer all material questions relating to the suit; or

(c) by some person able to answer all such questions.

(5) Where any such plaintiff, applicant or other person is represented by advocate or vakil, the address of the advocate or vakil shall be the address for service.

(6) Where an advocate, vakil or recognised agent represents more than one party in any proceedings, service of a single copy of any document on the advocate, vakil or recognised agent shall be sufficient service on all such parties.

(7) Every such summons shall be signed by Kadhi or appointed officer, and shall be sealed with the seal of the court.

(8) Every summons shall be accompanied by a copy of plaint.

Mode of service of summons.

18.-(1) Service of summons shall be made by delivering or tendering a copy thereof signed by the Kadhi or such other authorized officer and sealed with the seal of the court.

(2) Where there are more than one defendant, service of summons shall be made on each defendant.

(3) Wherever it is practicable, service of summons shall be made on the defendant in person, employer or an agent empowered to accept services, in which case services on such employer or an agent shall be sufficient.

(4) Where in any suit the defendant cannot be found and has no agent empowered to accept service of the summons on his behalf, service may be made on any adult member of the family of the defendant who is residing with him.

(5) For the purpose of sub rule (4) of this rule, a servant is not a member of the family.

(6) Where the serving officer delivers or tenders a copy of the summons to the defendant personally, or to an agent or other person on his behalf, he shall require the signature of the person to whom the copy is so delivered or tendered to an acknowledgement of service indorsed on the original summons.

(7) The serving officer shall in all cases of serving summons, indorse or annex or cause to be indorsed or annexed, on or to the original summons, a return stating the time when and the manner in which the summons was served, and the name and address of a person (if any) identifying the person served and witnessing the delivery or tender of the summons, such endorsement shall be deemed to be evidence of service.

Procedure when defendant refuses to accept services of summons or cannot be found.

19. Where the defendant, his agent or such other person as aforesaid refuses to sign acknowledgement, or where serving officer after using all due and reasonable diligence, cannot find the defendant, and there is no agent empowered to accept services of the summons on his behalf, nor any other person on whom service can be made, the serving officer shall:

(a) affix a copy of the summons on the outer door or some other conspicuous part of the house in which the defendant ordinarily resides or carries on business or personally works for gain, and

(b) then return the original to the court from which it was issued, with;

(i) a report endorsed thereon or annexed thereto stating that he has so affixed the copy;

(ii) the circumstances under which he did so; and

(iii) the name and address of the person (if any) by whom the house was identified and in whose presence the copy was affixed.

Examination of serving officer.

20. Where a summons is returned under rule 19 of these Rules, the court shall, if the return under that rule has not been verified by affidavit of the serving officer, and may, if it has been so verified, examine the serving officer on oath, or cause him to be so examined by another court, touching his proceedings, and may make such further inquiry in the matter as it thinks fit; and shall either declare that the summons has been duly served or order such service as it thinks fit.

Substituted services.

21.-(1) Where the Court is satisfied that for any sufficient reason the summons or other document cannot be served in the ordinary way, the Court may order the summons or other document to be served by affixing a copy thereof on the Court's notice board and also on some conspicuous part of the building in which the party to be served is known to have last resided, or in any other manner as the Court thinks fit.

(2) The Court may, in any case falling within sub rule (1) of this rule, make an order for service by advertisement through official media or any media as the court may think fit.

(3) Substituted service shall be as effectual as personal service.

(4) In cases of substituted service the Court shall, where it thinks fit, fix the time for the appearance in Court of the relevant party.

(5) An order for substituted service shall not be made in respect of:

(a) a subpoena; or

(b) any document initiating proceedings for the arrest or committal of any person.

(6) Any application for an order under this rule shall be supported by an affidavit stating the facts on which the application is made.

Proof of Service.

22.-(1) Service of summons or other document may, unless the Court otherwise orders, be proved by affidavit of the person who effected the service.

(2) A person served summons shall sign an acknowledgement of service, but refusal or inability to sign shall not affect the validity of the service.

(3) An order for service of summons, or for substituted service, may be varied by the Court.

PART FIVE
SERVICE OF SUMMONS OUT OF THE JURISDICTION OF COURT

When service of summons is allowed.

23-.(1) When the defendant is out of Zanzibar and has no agent in Zanzibar empowered to accept service of summons, the summons may not be served upon him except with the leave of the court and subject to other provisions of these Rules.

(2) The Court may order service of a summons or an application out of the jurisdiction if:

(a) the whole subject matter of the action relates to immovable property situated in Zanzibar;

(b) any relief is sought against any person domiciled or ordinarily residing in Zanzibar;

(c) the suit is brought to enforce, rescind, dissolve, annul or otherwise affect a contract of marriage or to recover damages or other relief for or in respect of the breach of such contract:

(i) made in Zanzibar; or

(ii) by its terms or implication to be governed by Zanzibar law, or is one brought in respect of breach committed in Zanzibar of a contract wherever

made, even though such breach is preceded or accompanied by a breach out of Zanzibar which rendered impossible the performance of the part of the contract which ought to have been performed in Zanzibar;

(d) any person out of Zanzibar is a necessary or proper party to an action properly brought against some other person duly served summons in Zanzibar; or

(e) in any case arising from marriage, one of the parties to the marriage at the time of the application is outside Zanzibar.

(3) Every application for leave to serve such summons out of Zanzibar shall be supported by affidavit or other evidence stating that in the belief of deponent the plaintiff has a good cause of action , and showing in what place and country such defendant is or probably may be found.

(4) Where leave is asked under this rule, any order giving leave to effect service out of the jurisdiction outside Zanzibar shall direct in what mode the service is to be effected and how such service may be proved.

Manners of service out of jurisdiction of Zanzibar.

24.-(1) An order for service out of the jurisdiction shall fix the day of appearance of the person to be served and the Court shall have regard to and may require evidence as to means of communication and transport.

(2) Where a leave to serve a summons or notice of summons on a defendant residing out of Zanzibar is issued such service may be effected on the following manners where:

(a) the defendant resides in Tanzania Mainland, within the District Court or Primary Court of the district to which the defendant resides;

(b) the defendant resides in any foreign country, by forwarding the summons through diplomatic

representative in the contry concerned for transmission to the judicial authority in such country competent to effect such services.

(3) For the purpose of sub rule (2) (b) above, Ministry responsible for Foreign Affairs shall facilitate the process.

(4) Any other order, notice or summons shall be deemed to be duly served upon a person resident out of Zanzibar if served in the manner prescribed in this rule for service on a defendant resident out of Zanzibar.

(5) Notwithstanding the provisions of this rule, a summons outside Zanzibar may be served by post, fax or e-mail or otherwise with a written request for service signed by the Kadhi, or the Registrar. Provided that, such services shall only be considered to be effective by producing evidence of accepting the same.

(6) An order for service of summons out of Zanzibar may be varied by the court from time to time.

PART SIX
MEDIATORS AND ULAMAAS

Parties be called for mediation.

25.-(1) Subject to provisions of section 19 of the Act, the Court may order parties to appear before a mediator for a mediation process.

(2) The order issued under sub rule (1) of this rule shall mention place of mediation, date, time and name of mediator.

(3) A mediator shall not start mediation process unless he obtains consent of both parties for him to act as a mediator.

(4) Duties of mediator, rights of parties, procedures and period of mediation are as provided under sections 21 to 27 of the Act.

Appointment of Mediators.

26.-(1) The Chief Justice after consultation with the Chief Kadhi shall appoint and publish in the Official Gazette a list of respected persons in each district to be Mediators in the respective districts.

(2) A person shall not be appointed as a mediator unless he:

(a) professes Islamic religion;

(b) has some knowledge of mediation;

(c) is a person with integrity and accepted by the society; and

(d) does not have personal interest to the matter or parties.

(3) A person appointed to be a mediator shall hold the post for three years and may be appointed for another tenure of three years.

(4) Any Mediator before taking his duties shall take oath before the Chief Justice.

(5) Where it happens that a mediator has interest on the matter he shall declare his interest and withdraw himself from the mediation

Appointment of Ulamaas.

27.-(1) The Chief Justice in consultation with Chief Kadhi shall appoint Ulamaas to sit with High Court Judge when hearing the appeal from the Appellate Kadhi.

(2) Any Ulamaa appointed shall not take the office unless has taken oath before Chief Justice.

(3)Ulamaa once appointed shall serve a tenure of three years of which may be extended for further three years by the Chief Justice.

(4)Any Ulamaa whose time has been extended under sub rule (3) of this rule shall continue with his oath taken during his appointment.

Allowance and other benefits for Ulamaa and Mediators.

28. The Chief Justice may from time to time determine and fix the allowances and other benefits for Ulamaas and Mediators for Kadhi's Court as he deems necessary which shall be paid by the court.

PART SEVEN
PLEADING GENERALLY

Pleading.

29.-(1) Every pleading shall be in Kiswahili language.

(2) A pleading shall contain only, a statement in a concise form of the material facts on which the party pleading relies for his claim or defence, as the case may be, but not the evidence by which they are to be proved.

(3) A pleading shall be divided into paragraphs numbered consecutively but dates, sums and numbers shall be expressed in figures.

Particulars to be given in pleading where necessary.

30. In all cases in which the party pleading relies on any misrepresentation, fraud, breach of trust, wilful default, or undue influence, and in all other cases in which particulars may be necessary beyond such as are exemplified in the forms aforesaid, particulars (with dates and items if necessary) shall be stated in the pleading.

Preliminary objections.

31. Any preliminary objection which is intended to be contested shall be distinctly specified in his pleading by the defendant or in the reply to the counter claim as the case may be.

New pleading or facts.

32. A pleading shall not, except by way of amendment, raise any new ground of claim or contain any allegation of fact inconsistent with the previous pleadings of the party pleading the same.

Pleading to be signed.

33.-(1**)** Every pleading shall be signed by the party, advocate, vakil, or agent if any.

(2) Where a party pleading is, by reason of absence or for other good cause, unable to sign the pleading, it may be signed by any person duly authorised by him to sign the same or to sue or defend on his behalf.

Verification of pleading.

34.-(1) Every pleading shall be verified at the foot by the party or by some other person proved to the satisfaction of the court to be acquainted with the facts of the case.

(2) The person verifying shall specify, by reference to the numbered paragraphs of the pleading, what he verifies of his own knowledge and what he verifies upon information received and believed to be true.

(3) Verification shall be signed by the person making it and shall state the date on which and the place at which it is signed.

Striking out pleading.

35. The court may at any stage of the proceedings order to be struck out any pleading which may be unnecessry or scandalas or which may tend to prejudice, embarras or delay the fair trial of the suit.

Amendment of summons or pleading.

36.-(1) The Court may, at any stage of the proceedings, allow either party to amend his pleadings, in such manner and on such terms as may be just, and for the purpose of determining the real questions in controversy or to achieve justice between the parties.

(2) Failure of the party to amend within the time limited for that purpose as ordered by the court, or if no time is specified, within fourteen days from the date of the order, shall not afterwards be permitted to amend, unless the time is extended by the court.

(3) An amendment shall be made by filing a fair copy of the amended document, which shall indicate the amendment made, and serving a copy of the amended document on the other party or parties.

(4) When the amendment is ordered during the trial or hearing of any action or proceedings, or if all parties are present when the amendment is made, the Court may in its discretion amend the document in the Court's file and service on the parties shall not be necessary.

(5) Clerical mistakes or errors arising from accidental slips or omissions may at any time be corrected by the Court without formality.

Appointment of recognised agent, vakil and advocate.

37.-(1) The appointment of a recognised agent shall be pronounced by the person who appoints, and accepted by the recognised agent so appointed, before the Court as in KC. Form IV contained in the Schedule.

(2) Any advocate who wants to appear before the Kadhi's Court shall apply before the Chief Justice.

(3) The Chief Justice in consultation with the Chief Kadhi, may permit any advocate to appear before the Kadhi's Court.

(4) Any vakil may appear before the Kadhi's Court to represent any party.

Death.

38. The agency of a recognised agent shall determine on the death of the party he represented, but advocate or vakil shall continue to be responsible for presenting administrator of estate of the deceased party in respect of the suit unless discharged by the appointed administrator of estate.

PART EIGHT
APPEARANCE OF PARTIES AND CONSEQUENCE OF NON APPEARANCE

Parties to appear on day fixed in summons.

39. On the day fixed in the summons for the defendant to appear and answer, the parties shall be in attendance at the court house in person, their respective advocates, vakil or recognized agent and the court shall give such directions or take such other steps as the circumstances of the case may require.

Where neither party appears.

40.-(1) Where neither party appears when the suit is called for hearing the court may make an order that the suit be dismissed.

(2) Where a suit is dismissed under this rule, the plaintiff may bring a fresh suit; or may apply for an order to set the dismissal aside, and if he satisfies the court that there was sufficient cause for his non-appearance, the court shall make an order setting aside the dismissal and shall appoint a day for proceeding with the suit.

Procedure where only plaintiff appears.

41.-(1) Where the plaintiff appears and the defendant does not appear when the suit is called for hearing, then if:

(a) it is proved that the summons was duly served, the court may, proceed ex parte;

(b) it is not proved that the summons was duly served, the court shall direct a second summons to be issued and served on the defendant;

(c) it is proved that the summons is served on the defendant, but not in sufficient time to enable him to appear and answer on the day fixed in the summons, the court shall postpone the hearing of the suit to a future day to be fixed by the court, and shall direct notice of such day to be given to the defendant.

(2) Where the plaintiff' fails to serve a summon by default or causes not to be duly served or is not served in sufficient time, the court shall order the plaintiff to pay the costs occasioned by the postponement.

Procedure where defendant appears on a day adjourned for hearing.

42. Where the court has adjourned the hearing of the suit ex-parte, and the defendant, at or before such hearing, appears and assigns good cause for his previous non-appearance, he may, upon such terms as the court directs as to costs or otherwise, be heard and answer to the suit as if he had appeared on the day fixed for his appearance.

Procedure where defendant only appears.

43.-(1) Where the defendant appears and the plaintiff does not appear when the suit is called for hearing, the court shall make an order that the suit shall be dismissed, unless the defendant admits the claim, or part thereof, in which case the court shall, unless it sees sufficient cause to the contrary, pass a decree against the defendant upon such admission and, when part only of the claim has been admitted, shall dismiss the suit so far as it relates to the remainder.

(2) Where for sufficient cause the court sees fit not to pass a decree against the defendant upon his admission, it shall give such directions or make such an order as to the further hearing of the suit upon such terms as to notice to the plaintiff or otherwise as may be thought just.

(3) Where a suit is wholly or partly dismissed under this rule, the plaintiff shall be precluded from bringing a fresh suit in respect of the same cause of action.

(4) The plaintiff may apply for an order to set the dismissal aside, and if he satisfies the court that there was sufficient cause for his non-appearance when the suit was called on for hearing, the court shall make an order setting aside the dismissal upon such terms as to costs or otherwise as it thinks fit, and shall appoint a day for proceeding within the suit.

(5) Where a party who has been ordered to appear in person, does not appear, or does not show sufficient cause to the satisfaction of the court for failing so to appear, he shall be subject to all the provisions of the forgoing Rules applicable to plaintiffs and defendants respectively, who do not appear.

Setting aside decree ex parte against defendant.

44.-(1) In any case in which a decree is passed ex parte against a defendant, he may apply to the court by which the decree was passed for an order to set aside; and if he satisfies to the court that the summons was not duly served, or that he was prevented by any sufficient cause from appearing when the suit was called on for hearing, the court shall make an order setting aside the decree as against him upon such terms as to costs, payment into court or otherwise as it thinks fit, and shall appoint a day for proceeding with the suit.

(2) A decree shall be set aside on any such application as aforesaid unless notice thereof has been served on the opposite party.

PART NINE
FRAMING OF ISSUES, HEARING OF SUIT AND EXAMINATION OF WITNESSES

Framing of issues.

45.-(1) Where a suit is brought to Court by a mediator under section 25(1) or 27 of the Act, hearing of the suit shall begin.

(2) At the first hearing of the suit the court shall, after reading the plaint and the written statements, if any, may thereupon proceed to frame and record the issues on which the right decision of the case appear to depend.

(3) The court may frame issues from all or any of the following:

(a) allegations made on oath by the parties, by persons present on their behalf or made by pleaders of such parties;

(b) allegations made in pleadings; or

(c) the contents of documents produced by either party.

Court may examine any person or document prior to framing issues.

46.-(1) Where the court is of the opinion that issues cannot be framed without the examinations of some person not before the court or without inspection of some document not produced in the suit, it may adjourn the framing of issues to a future day.

(2) Subject to any law for the time being in force, the court may compel the attendance of any person or production of any document by a person who has possession or has power over such document by summons or other process.

Right to begin.

47. The plaintiff has the right to begin stating his case unless the defendant admits the facts alleged by the plaintiff and contends that either in point of law or on some additional facts alleged by the defendant, the plaintiff is not entitled to any part of the relief which he seeks, in which case the defendant has the right to begin.

Order of speeches.

48.-(1) On the day fixed for hearing of the suit, the party having right to begin shall state his case and produce his evidence in support of the issues which he is bound to prove.

(2) The opposite party is entitled a right to cross examine each witness after testifying provided that the Court restricts defamatory and vexing questions.

(3) After cross examination, the party who called that witness may re-examine his witness.

(4) The Court may also examine any witness testifying for any party.

(5) After calling all his witnesses to testify in court, the party shall close his case.

(6) The other party shall then call his witnesses to testify in court and the opposite party shall have right to cross examine and he may also re-examine his witness.

(7) A party intending to produce any document as annexure in court shall produce it during hearing of his case.

(8) Notwithstanding anything in this rule, the Court may order any party to submit a written submission in such order and within such time as the court may order.

(9) Where the defendant elects not to adduce any evidence but elects to submit that there is no case to answer, the Court shall record the defendant's submission and give judgment.

(10) Where:

(a) the plaintiff is required to adduce his evidence and does not have, and the defendant denies the claim, the defendant shall be required to take yameen oath and the suit will be dismissed; or

(b) the defendant denies the claim and has no witness, and refuses to take yameen oath and a judgment shall be given.

(11) For the purpose of this rule, "yameen oath" is an Islamic oath containing wholly names of Allah such as Wallah, Billahi, Tallahi confirming parties claim.

Suit to be heard in open court.

49.-(1) Save as hereinafter provided any disputed question or issue of fact or law arising in any suit within the original jurisdiction shall be heard and determined in open court.

(2) Notwithstanding the provisions of sub rule (1) of this rule, the court may for reasons to be recorded on the minutes hear and

determine otherwise than in open court any disputed issue of fact or of law arising when in the opinion of the court a hearing in open court would be calculated to defeat the ends of justice.

(3) Save as otherwise provided in this part, the evidence of the witnesses in attendance shall be taken orally in open court or with the consent of all parties, in chambers, in the presence and under the personal direction and superintendence of the Court.

How evidence shall be taken.

50.-(1) The evidence of each witness shall be taken down in writing or by recording in the language of the court, by or, in the presence and under the personal direction and superintendence of the Kadhi, and shall not ordinarily be in the form of question and answer, but in that of a narrative.

(2) In case the witness or either party requires the evidence to be read over, such evidence shall be read over in the presence of the Kadhi and of the witness, and the Kadhi shall, if necessary, correct the same, and sign it.

(3) The court may, of its own motion or on the application of any party or his advocate, take down any particular question and answer, or any objection to any question, if there appears to be any special reason for so doing.

(4) Where any question put to a witness is objected to by the party, his vakil, advocate or agent, and the court allows the same to be put, the Kadhi shall take down the question, the answer, the objection and the name of the person making it, together with the decision of the court thereon.

(5) Documents or other exhibits put in evidence and accepted shall be marked and, unless the Court otherwise orders, such documents or exhibits or copies of the documents or exhibits shall be retained in Court during the pendency of the proceedings and until the time for appeal has expired.

(6) For the purpose of identification, documents or other exhibits tendered in evidence but rejected, shall also be marked.

51. The court may record such remarks as it thinks material concerning the demeanor of any witness while under examination. Remarks on demeanor of witnesses.

52.-(1) Where the witness is about to leave the jurisdiction of the court, or other sufficient cause is shown to the satisfaction of the court why his evidence shall be taken immediately, the court may, upon the application of any party or of the witness, at any time after the institution of the suit, take the evidence of such witness in manner herein before provided. Taking evidence of witness before trial date.

(2) Where such evidence is not taken forthwith and in the presence of the parties, a notice shall be given to parties on the day fixed for the examination.

(3) The evidence so taken shall be read over to the witness, and, if he admits it to be correct, shall be signed by him, and the Kadhi shall, if necessary, correct the same and shall sign it, and it may then be read at any hearing of the suit.

53. The court may at any stage of the suit recall any witness who has been examined and may put such questions to him as the court thinks fit. Court may recall and examine witness.

54.-(1) Where a suit is transferred to another Kadhi, the successor shall proceed where his predecessor ended. Power to deal with evidence recorded by another Kadhi.

(2) Where suit is transferred to another Kadhi for lack of trust of either party, the trial Kadhi shall ask the parties whether to proceed or to start a fresh and then shall decide accordingly.

55. The court may at any stage of a suit inspect any property or thing concerning which any question may arise. Powers of court to inspect.

PART TEN
AFFIDAVITS

Matters to which affidavits shall be confined.

56. Affidavits shall be confined to such facts as the deponent is able of his own knowledge to prove, except on interlocutory applications, on which statements of his belief may be admitted provided that grounds thereof are stated.

Power to order any point to be proved by affidavit.

57.-(1) The court may at any time for sufficient reason order that any particular fact may be proved by affidavit, or that the affidavit of any witness may be read at the hearing, on such conditions as the court thinks reasonable.

(2) Where it appears to the court that either party bona fide desires the production of a witness for cross examination, and that such witness can be produced, an order shall not be made authorizing the evidence of such witness to be proved by affidavit.

Power to order attendance of a deponent for cross examination.

58.-(1) Upon any application evidence may be given by affidavit, but the court may, at the instance of either party, order the attendance for cross examination of the deponent.

(2) Such attendance shall be in court, unless the deponent is exempted from personal appearance in court, or the court otherwise directs.

PART ELEVEN
SUIT BY A PERSON WITH LEGAL IMPAIRMENT

Person with legal impairment.

59. Any person with legal impairment may file a suit or be filed a suit against by his guardian ad litem duly approved by the Court.

Bindingness of guardian's consent.

60. A consent or waiver which is given on behalf of a person with legal impairment by his guardian ad litem with the approval of the Court shall be binding on him .

General provisions as to legal impairment.

61. Where a plaintiff is a person with legal impairment, no settlement or compromise shall be valid without the Court's sanction and all money

or other property recovered for the plaintiff in, or in consequence of, the action shall be paid into Court or deposited in Court unless the Court otherwise orders.

Irregular proceedings.

62. Any proceedings taken by or against a person with legal impairment otherwise than in accordance with these Rules shall be dismissed and any judgment or order made therein may be set aside.

Removal of Guardian ad litem.

63.-(1) The Court may for sufficient reason in accordance with Islamic law remove any guardian ad litem and replace him by another, being a fit and proper person and willing to act.

(2) The Court may appoint another capable person to be a guardian ad litem.

Minor plaintiff attaining majority or a person with mental incapacity recovers.

64.-(1) A minor plaintiff on attaining the age of majority or a person of unsound mind recovering during the pendency of any proceedings, may either withdraw the proceedings before taking any step therein or adopt the proceedings.

(2) A leave to withdraw shall not be required, but provisions concerning settlement, withdrawal and discontinuance of suit shall apply as regards to the matters.

(3) If the plaintiff under this rule withdraws his claim, he shall not be liable for costs, unless the Court otherwise orders.

(4) Where there are more than one plaintiff, the minor plaintiff who attains the age of majority or a person with mental incapacity recovers, shall not be entitled to withdraw without leave of Court but may apply to the Court to remove his name or, if he is a necessary party in the proceedings, delete his name as plaintiff and make him as defendant, on such terms as the Court may direct.

(5) If the proceedings are continued, the plaintiff shall apply to amend the title of the proceedings and the Court may amend the title and release his guardian ad litem.

Minor defendant attaining majority or a person with mental disability recovers.

65. Where a minor defendant attains majority or a person with mental disability recovers during the pendency of any proceedings, either he or his guardian ad litem may file an affidavit in proof of such majority or recovery and thereupon the title of the proceedings shall be amended, and the guardian ad litem shall be discharged, subject to any questions of costs occasioned by his negligence or misconduct.

Application to file a suit or defend as a poor person.

66.-(1) Any person who desires to commence or defend any action or other proceedings in his own right, and is unable to pay the Court fees therefor, may apply to the Court for leave to file a suit or defend as a poor person.

(2) An application under sub rule (1) of this rule shall be made in the form prescirbed in the Schedule to these Rules under KC. Form V and supported by an affidavit containing the following particulars:

(a) his name, place of abode and occupation;

(b) a declaration that he is unable to pay the Court fees in the proceedings;

(c) all the material facts of the case; and

(d) all attached documents related to the application (from District Commissioner concerned.)

(3) The affidavit shall be prepared by the applicant or by an officer of the appropriate Court and shall be verified in the presence of a Kadhi or Registrar.

(4) Where the Court is satisfied:

(a) that the applicant is unable to pay the Court fees in the proceedings; and

(b) that the applicant has a good cause of action or defence, as the case may be, the Court shall make an order admitting the applicant (hereinafter called the "poor person") to file a suit or defend, as the case may be, as a poor person.

(5) Where an order is made under sub rule (4) of this rule, the summons and other process in the action or other proceedings and the relevant entry in the cause book shall be marked "poor person".

(6) Where the Court is not so satisfied it shall dismiss the application and there shall be no appeal against the dismissal.

A poor person may discontinue with a suit.

67. A poor person may discontinue, settle or compromise the action or other proceedings with the leave of the Court.

Costs.

68. Unless the Court orders otherwise, poor person shall not be liable to pay costs to any party, or be entitled to receive from any other party any costs other than the actual expenses incurred in the course of the proceedings.

PART TWELVE
DISCOVERY OF DOCUMENTS

Discovery of documents.

69.-(1) Any party may without filing any affidavit, apply to the court for an order directing any other party to any suit to make discovery of the document which is or has been in his possession, relating to any matter in question therein.

(2) In the hearing of such application the court may either refuse or adjourn the same, if satisfied that such discovery is not necessary or not necessary at that stage of the suit, or make such order either generally or limited to certain classes of documents, as may, in his discretion, be thought fit.

(3) Such discovery shall not be ordered when and so far as the court shall be of the opinion that it is not necessary either for disposing fairly of the suit or for saving costs.

(4) It shall be lawful for the Court, at any time during the pendency of any suit to order the production by any party thereto, upon oath, of such documents in his possession or power, relating to any matter in question in such suit, as the court shall think right; and the court may deal with such documents, when produced, in such manner as shall appear just.

Presentation of a copy of any document.

70. Any party shall be entitled to present a copy of any document in the possession of another party and referred to in any pleading, affidavit or other documents filed by him in the proceedings or on oral examination.

Non-compliance with order for discovery.

71.-(1) Where any party intentionally fails to comply with any order for discovery of document, he shall if a plaintiff, be liable to have his suit dismissed for want of prosecution, and if a defendant, to have his defence, if any, struck out, and to be placed in the same position as if he has not defended, and the party seeking discovery may apply to the court for an order to that effect, and an order may be made accordingly.

(2) The Court shall not struck out the defendant's defence unless it is proved that the content of the alleged document to be produced relate to the matter in dispute and is a necessary document for proving or disproving the matter in dispute.

Privileged communi-cations and documents.

72. Production and inspection of documents under this Part shall be subject to the provisions of any law relating to privileged communications and documents.

Appeal against the order.

73. There shall be no appeal against any order of the Court under this Part except in an appeal against the judgment of the case as a whole.

PART THIRTEEN
TRANSFER OF PROCEEDINGS

Transfer of proceedings to another Court.

74.-(1) Where a Kadhi foresees that any proceedings in that Court can be more conveniently or fairly tried in some other Court or Kadhi, he shall inform the Kadhi incharge or Registrar who shall nominate another Kadhi to try the case.

(2) Any transfer of any proceedings under sub rule (1) of this rule, may be made by the Kadhi of his own motion or on the application of any party.

(3) Once another Kadhi is nominated, the Kadhi who resigned shall cause a case file and all relevant exhibits to be transferred to a nominated Kadhi.

75.-(1) Where an order is made for the transfer of any proceedings from one Court or Kadhi to another Court, the Kadhi or Court from which the proceedings are transferred shall send to the Kadhi or Court to which the proceedings are transferred the file, all documents, exhibits and certified copies of the notes of evidence of the proceedings, if any. Procedure on transfer.

(2) The Court to which the proceedings are transferred may, of its own motion or on the application of any party, give such directions as to the further conduct of the proceedings as it may think fit.

PART FOURTEEN
SETTLEMENT, WITHDRAWAL AND DISCONTINUANCE OF SUIT

76.-(1) Where by agreement of the parties an action has been settled, the Court shall, by consent of the parties, record the fact of such settlement with the terms thereof, and the record of the settlement shall afford a defense by way of res judicata to subsequent proceedings from the same cause of action. Settlement of action.

(2) Where settlement has been reached by the parties out of court before filing of the case, such settlement shall be registered before the court and the court shall record as consent judgement.

77.-(1) The plaintiff may, with leave of the Court, at any time before judgment withdraw any proceedings wholly or in part by giving notice to the Court and serving a copy of the notice to the defendant. Withdrawal of claim.

(2) Where the plaintiff withdraws any proceedings under sub rule (1) of this rule, the defendant may be entitled to the costs of the proceedings.

78.-(1) Where the plaintiff has withdrawn the proceedings under sub rule (1) of rule 77 of these Rules, he shall not thereafter bring an action for the same, or substantially the same cause of action unless the Court has granted leave to institute fresh suit. Effect of withdrawal on future proceedings.

(2) Withdrawal or dismissal of the plaintiff's claim shall not prevent the hearing and determination of a counterclaim

Stay of proceeding.

79.-(1) The plaintiff with consent of court and with acceptable grounds may stay any proceedings provided that will be liable to pay any other party's costs of the action.

(2) If before payment of such costs the plaintiff subsequently brings an action for the same, or substantially the same cause of action, the Court may order the proceedings in that action to be stayed until such costs are paid.

Conciliation.

80. The parties to any suit may, at any stage of the proceedings, hold conciliation to settle their dispute in accordance with these Rules.

PART FIFTEEN
INTERLOCUTORY PROCEEDINGS AND INTERIM ORDERS

Form of application.

81.-(1) Every application shall state in full the nature of the order applied for, and in sufficient detail the facts relied upon in support thereof, and unless the Court otherwise orders, shall be served on all parties and persons interested therein.

(2) An application under this Part may be heard interparte unless the Court otherwise directs or otherwise provided in this Part.

Notice of application be filed.

82.-(1) An application shall be deemed to have been made when a notice in respect of the application have been filed and sealed by an officer of the Court.

(2) An application cannot be amended after filing without the leave of the Court.

Service of application.

83. Any application asking for the extension or abridgment of any period of time may be served on the day before the day specified for the hearing thereof, except as provided in these Rules or the Court otherwise orders, an application shall be served on each of the other parties not less than two clear days before the day so specified.

Application be supported by affidavit.

84.-(1) Every application shall be supported by an affidavit.

(2) Any party filing an affidavit intended to be used by him in

any proceedings relating to the application shall give notice to other party of the filing or of his intention, as the case may be.

Copies of the documents.

85. The original of any documents which is to be used in evidence in proceedings relating to the application shall, if it is available, be brought in, and copies of any such documents or of any part thereof shall be supplied for the use of the Court or be given to the other parties to the proceedings.

Adjournment of application.

86.-(1) The hearing of an application may be adjourned from time to time, either generally or to a particular date, as may be appropriate.

(2) If the hearing is adjourned generally, the party by whom the application was taken out may restore it on two clear days' notice before the day specified for the hearing to all the other parties on whom the application was served.

Non-appearance of parties.

87.-(1) Where the applicant without accepted reasons fails to attend on the hearing of his application, the Court shall dismiss the application.

(2) Where the respondent fails to attend on the first or any resumed hearing of the application and the Court thinks it expedient to proceed with the hearing exparte.

(3) Before proceeding with the hearing exparte, the Court shall be satisfied that the application or the notice of the time appointed for the resumed hearing, as the case may be, was duly served on the respondent.

(4) Where the application has been dismissed without hearing by reason of the failure of the applicant to attend, the Court may, if satisfied that it is just to do so, allow the application to be restored.

(5) Where the Court hearing an application expate, that any order made on the hearing has not been executed, the Court, if satisfied that it is just to do so, may rehear the application.

(6) If both parties are absent without acceptable justification, the Court shall dismiss the application.

Order made ex parte may be set aside.

88.-(1) The Court may, on the application of any party to any cause or matter, set aside an order made ex parte under this Part.

(2) An application under sub rule (1) of this rule shall be made within fourteen days from the date of the order and be heard interparte.

Application in a proceeding.

89. The Court may, in its discretion, during the hearing of an application under this Part, allow any other application therein to be heard orally.

Power of Court to grant interim order.

90.-(1) The Court shall, in its discretion, have the power to grant any interim order on such terms as it deems fit and may give directions as to further proceedings.

(2) There shall be no appeal against any interim order made under this Part unless such an order affects material suit.

Detention, preservation or custody of a property in dispute.

91.-(1) On the application of any party to a cause or matter, the Court may make an order for the detention, preservation or custody of any property which is the subject matter of the cause or matter.

(2) For the purpose of enabling any order under sub rule (1) of this rule to be carried out, the Court may by the order authorize any person to enter upon any immovable property in the possession of any party to the cause or matter.

(3) Where the right of any party to a specific fund is in dispute in a cause or matter, the Court may, on the application of a party to the cause or matter, order the fund to be paid into Court or otherwise secured.

Injunction.

92.-(1) Upon an application of any party in any cause or matter, before or after the hearing of the cause or matter, the Court may grant an injunction.

(2) An application under this rule shall not be made before an action has begun and shall be filed under a certificate of urgency.

(3) Where the applicant is the plaintiff and the case is one of urgency, such application may be made ex parte supported by an affidavit and that affidavit shall contain a clear and concise statement of:

(a) the facts giving rise to the claim against the defendant in the proceedings;

(b) the facts giving rise to the claim for the injunction;

(c) the facts relied on as justifying the application being made ex parte including details of any notice given to the defendant or, if none has been given, the reason for giving none;

(d) any answer asserted by the defendant, or which he is thought likely to assert, either to the claim in the action or the claim for the injuction;

(e) any facts known to the applicant which might lead the Court to grant ex parte injunction;

(f) whether any previous similar ex parte application has been made to any other Kadhi and, if so, the order made in that previous application; and

(g) the precise relief sought.

An interim order as to taking care of a child.

93.-(1) Subject to the Islamic Shariah, if the Court is satisfied, on the application of any party for taking care of a child in any cause or matter, that the circumstances require an interim order to be made for taking care of that child, the Court may make such order which shall have immediate effect and shall continue to be in force until the Court has made a decision on the cause or matter.

(2) An application under this rule shall not be made before the action has begun except in a case of urgency which in the interest of justice or for the protection of the applicant or the child it appears that the immediate intervention of the Court is necessary.

(3) Where the applicant is the plaintiff and the case is one of urgency, such application may be made ex parte and shall be supported by an affidavit and that affidavit shall contain a clear and concise statement of:

(a) the facts giving rise to the claims against the defendant in the proceedings;

(b) the facts giving rise to the claim for an interim order;

(c) the fact relied on as justifying the application being made ex parte;

(d) any facts known to the applicant which might lead the Court not to grant an interim order;

(e) whether any previous similar ex parte application has been made to any other Kadhi and, if so, the order made in that previous application; and

(f) the precise relief sought.

Interim order as to maintenance.

94.-(1) Subject to the Islamic Shariah, if the Court is satisfied, on the application of any party entitled to maintenance in any cause or matter, that the circumstances require an interim order for maintenance to be made against the person liable to pay maintenance, the Court may make such an order which shall have immediate effect and shall continue in force until the Court has made a decision on the matter or otherwise.

(2) Where the application referred to in sub rule (1) of this rule is in respect of an interim order for the maintenance of a child, the Court shall not make such an order unless it is satisfied that the father or the person liable for the maintenance of the child has the capability to pay for the maintenance applied for.

Power to order evidence to be taken.

95.-(1) Where the Court considers it necessary or expedient for the purpose of obtaining full information or evidence in any cause or matter, the Court may, on the application of any party to the cause or matter, and on such term, if any, as it thinks just, by order authorize or require any evidence to be taken of any property which is the subject-matter of the cause or matter or as to which any question may arise therein, any observation to be made on such property or any experiment to be tried on or with such property.

(2) For the purpose of enabling any order under sub rule (1) of this rule to be carried out, the Court may by the order authorize any person to enter upon any immovable property in the possession of any party to the cause or matter.

Sale of perishable property.

96. The Court may, on the application of any party to any cause or matter, make an order for the sale by such person, in such manner and on such terms, as may be specified in the order of any movable property which is the subject matter of the cause or matter and likely to deteriorate if kept or which for any other good reason it is desirable to be sold forthwith.

Order for early trial.

97. Where on the hearing of the application, made before the trial of a cause or matter, for an interim order it appears to the Court that the matter in dispute can be better dealt with by an early trial, the Court may make an order accordingly as the justice of the case requires.

Power of Court to call any party.

98. For the interest of justice, the Court may, at any stage of the proceedings, call any party to adduce evidence and may inspect any place or thing in the presence of the parties.

Where trial not concluded.

99.-(1) Where a Kadhi commences the trial of any proceedings and is unable for any reason to conclude the trial, another Kadhi may with the consent of all parties continue the trial and give judgment.

(2) Where the consent referred to in sub rule (1) of this rule cannot be obtained, Kadhi shall determine the proceeding of the case as he deems fit.

Adjournment of trial.

100. The Court may from time to time adjourn the trial, and in so doing may impose any condition as it deems fit.

Procedure in trying offence of contempt of Court.

101.-(1) Where a person is deemed to commit an offence of contempt of court under section 30 of the Act, the court shall require him to show cause as to why he shall not be punished for that offence.

(2) The accused shall make his defence and if the court finds that the offence has been commited, it may sentence him accordingly and if it finds that no offence has been commited, the accused shall be discharged.

(3) The proceedings of the contempt of court shall be recorded in the same file of the case which was proceeding during the commission of the offence.

PART SIXTEEN
DEATH OF PARTIES AND ABATEMENT OF SUIT

Abatement by party's death.

102.-(1)The death of the party shall not cause the suit to abate if the right to sue survives.

(2) Where any of the parties dies, and where the right to sue survives to the surviving plaintiff alone, or against the surviving defendant alone, the court shall cause an entry to that effect to be made on the record, and the suit shall proceed at the instance of the surviving plaintiff or against the surviving defendant.

(3) Where a sole plaintiff dies, and the right to sue survives, the court, on an application made in that behalf, shall cause the legal representative of the deceased plaintiff to be made a party and shall proceed with the suit.

(4) Where within sixty days from the death of the plaintiff no application is made under sub rule (3) of this rule, the suit shall abate so far as the deceased plaintiff is concerned, and, on the application of the defendant, the court may award to him the costs which he may have incurred in defending the suit to be recovered from the estate of the deceased plaintiff.

(5) Where a sole defendant dies, and the right to sue survives, the court, on an application made in that behalf, shall cause the legal representative of the deceased defendant to be made a party and shall proceed with the suit.

(6) Any person so made a party may make any defence appropriate to his character as legal representative of the deceased defendant.

(7) Where within sixty days from the death of the defendant no application is made under sub rule (6) of this rule, the suit shall abate so far as the deceased defendant is concerned, and, on the application of the plaintiff, the court may award to him the costs which he may have incurred in filing of the suit, to be recovered from the estate of the deceased defendant.

Effect of abatement.

103.-(1) Where a suit abates or is dismissed under this Part, no fresh suit shall be brought on the same cause of action.

(2) The plaintiff or the person claiming to be the legal representative of a deceased plaintiff may apply for an order to set aside the abatement or dismissal; and if it is proved that he was prevented by any sufficient cause from continuing the suit, the court shall set aside the abatement or dismissal upon such terms as to costs or otherwise as it thinks fit.

(3) An application under sub rule (2) of this rule may be admitted after the period of limitation prescribed therefore, when the applicant satisfies the court that he had sufficient cause for not making the application within such period.

Abatement by reason of death after hearing.

104. Notwithstanding anything contained in the foregoing rules whether the cause of action survives or not, there shall be no abatement, by reason of the death of either party between the conclusion of the hearing and the pronouncing of the judgment, but judgment may in such case be pronounced notwithstanding the death and shall have the same force and effect as if it had been pronounced before the death took place.

PART SEVENTEEN
JUDGMENT, DECREE AND ORDERS

Judgment and its contents.

105.-(1) The court after trying the case, shall pronounce a written judgment in open court either at once or as soon as may be practicable on some future day.

(2) Judgments shall contain a concise statement of the case, the points for determination, the decision thereon, the reasons for such decision, reliefs granted, orders, date and signature of the Kadhi.

(3) When a Kadhi who has tried any proceedings is for any reasonable grounds unable to write a judgment, the judgment shall be written by any other Kadhi assigned to it.

(4) When a Kadhi who has tried any proceedings is for any reasonable grounds unable to pronounce judgment, his written judgment may be read in open court by any other Kadhi or the Registrar.

(5) Any judgments pronounced under this rule shall form part of the proceeding of the case.

Consent judgment.

106.-(1) Judgment by admission or consent of the parties, including reconciliation shall be recorded and included in the proceeding by the Court.

(2). The court shall take the terms of a consent judgment as a judgment of the court.

Instalments when due.

107. Where any order is made for payment by instalments in a particular month, the instalment shall, in the absence of any direction to the contrary, be deemed to be payable on the last day of the month next following and on the first day of each succeeding month.

Order for instalments.

108.-(1) Any debtor against whom a judgment has been or is about to be given may apply to the Court for leave to pay the judgment debt by instalments.

(2) Any party may, if an order for payment by instalments has been made, apply that it be vacated or that the instalments be increased or decreased and the Court, after hearing the parties, may make such order as it thinks just.

Judgment or order requiring act to be done.

109.-(1) Every judgment or order requiring any person to do any act, other than the payment of money, shall state the time within which the act is to be done, and if no time so stated, the act shall be done within seven days from the date of the judgment or order.

(2) Where the person required to do the act was personally present or represented by his attorney when the judgment or order was given or made, it shall not be necessary to serve him with a copy of the judgment or order.

(3) Where the person required to do the act was not personally present or represented, no proceedings for his arrest or commitment shall be taken unless he has been served with a copy of the judgment or order endorsed by the Court.

(4) Every judgment or order shall be dated and take effect on the date on which it was pronounced.

Judgment on movable property.

110. A judgment for the delivery of movable property shall state the amount of money to be paid as an alternative if delivery cannot be made.

Contents of Decree.

111. A decree shall concur with the judgment and shall contain number of the suit, names and discription of the parties and particulars of the claim, and shall specify clearly the relief granted or other determination of the suit and who will bear the cost.

PART EIGHTEEN
APPEAL, REVIEW AND REVISION

Limitation of appeal and revision.

112.-(1) Subject to the provisions of section 15(1) and 18 of the Act, a party dissatisfied with the decision of District Kadhi's Court or Appellate Kadhi's Court may appeal or apply for revision to the High Court against the whole or any part of a decision.

(2) The period of appeal shall be 30 working days from the date of delivering the judgment but a period of waiting for the proceedings shall not be counted.

(3) The period of revision shall be 60 working days after the expiration of the period of appeal.

(4) The court may, in its discretion, from time to time, enlarge such period, even though the period originally fixed may have expired.

(5) Where it is proved that, the applicant was misled by any order, practice or judgment of the court in ascertaining or computing the prescribed period of limitation may be sufficient cause within the meaning of this rule.

(6) The court shall, upon receipt of the application of proceedings and upon payment of the prescribed fee, supply to the appellant a certified copy of the proceedings, judgment and decree.

Application for review.

113.-(1) Any party after discovering an error on the face of records, on application may request the Court to review its decision.

(2) Where the Court has been satisfied with the reasons given in the application, it may review its decision as it thinks appropriate.

Memorandum of appeal or revision.

114.-(1) The appellant or applicant shall lodge with the Registrar of the Court a memorandum of appeal or application for revision enough copies addressed to the Court hearing the appeal or revision.

(2) Every memorandum of appeal or application for revision shall contain:

(a) name of the Court;

(b) case number appealed or revised against; and

(c) grounds of appeal or revision in concise form and numbered consecutively.

(3) Every memorandum of appeal or revision lodged to the

Registrar shall be in requisite number of copies attached with the following:

(a) copies of proceedings of the court to which its decision is appealed against; and

(b) copies of judgment and decree;

(4) The Registrar or the appellant as the case may be, upon paying a prescribed fee shall cause a copy of memorandum of appeal or application to be served to the opposite party.

Stay of execution pending appeal.

115. The lodging of appeal shall not operate as a stay of execution, but the Court may, on application and on sufficient cause being shown, stay execution on such terms as it may think fit.

Execution of judgment on appeal.

116. When the Court hearing the appeal and has produced the order to the Court appealed from, the Court appealed from shall execute the order in accordance with the provisions of these Rules.

Calling a file for records.

117. The High Court or the Appellate Kadhis' Court may call for the record of any case which has been decided by any District Kadhi's Court and in which no appeal lies thereto, and if such Kadhis' Court appears to:

(a) have exercised a jurisdiction not vested in it by law;

(b) have failed to exercise a jurisdiction so vested; or

(c) have acted in the exercise of its jurisdiction illegally or with material irregularity, may make such order in the case as it thinks fit.

PART NINETEEN
EXECUTION OF JUDGEMENT

Duty to comply with order and judgment.

118.-(1) Every person directed by any judgment to do any act shall comply therewith without any condition, and it shall not be necessary for the court to serve on him the judgment or any notice of the judgment.

(2) A judgment debtor shall from time to time inform the Court of his latest address of residence.

Enforcement of judgment.

119.-(1) Subject to these Rules, a judgment or an order for the payment of money, may be enforced by one or more of the following means:

(a) an order of seizure and sale of the judgment debtor's property; or

(b) an order of committal to prison judgement debtor.

(2) Sub rule (1) of this rule shall apply without prejudice to any other remedy available to enforce a judgment or an order for the payment of money under any other written law, or to the power of a Court to commit to prison a person who makes default in paying money adjudged or ordered to be paid by him.

Procedure for attachement of immovable property.

120.-(1) Subject to these Rules, a judgment or an order for the giving of possession of immovable property may be enforced by one or more of the following means:

(a) temporary attachment; or

(b) sell by auction.

(2) An order for attachment shall not be given unless it is shown that every person in actual possession of the whole or any part of any immovable property has received such a notice of the proceedings as appear to the Court to be sufficient to enable him to apply to the Court for any relief to which he may be entitled.

(3) An order for attachment may include provisions for enforcing the payment of any money adjudged or ordered to be paid by the judgment or order which is to be enforced.

(4) A judgement or order for the payment of the assessed value of any immovable property may be enforced by the same means as any other judgement or order from the payment of money.

Procedure for execution of movable property.

121.-(1) Subject to these Rules, a judgment or an order for the delivery of any movable property which does not give the person against whom the judgment is given or order made the alternative of paying the assessed value of the property may be enforced by one or more of the following means:

(a) handing of the property; or

(b) attachment of property and handing the same.

(2) Subject to these Rules, a judgment or an order for the delivery of any movable property or payment of its assessed value may be enforced by one or more of the following means:

(a) handing the property or its assessed value;

(b) attachment of property and handing the same; or

(c) selling the property by auction and handing assess value to the person concerned.

(3) An order of specific delivery, and an order of delivery to recover any movable property or its assessed value, may include provisions for enforcing the payment of any money adjudged or ordered to be paid by the judgment or order.

(4) A judgment or order for the payment of the assessed value of any movable property may be enforced by the same means as any other judgment or order for the payment of money.

Procedure of enforcement of judgment to do an act or abstain from doing it.

122. Where:

(a) a person required by a judgment or order to do an act within a time specified in the judgment or order refuses or neglects to do it within that time; or

(b) a person who disobeys a judgment or order requiring him to abstain from doing an act, then, subject to these Rules, the judgment or order may be enforced by one or more of the following means, that is to say:

(i) with the leave of the court, an order of fine as the court may think fit or committal in case of default of the payment of the fine; or

(ii) where that person is a body corporate, with the leave of the court, an order of fine as the court may think fit or committal in case of default of payment of the fine against any executive officer or other officer of the body corporate.

Power of Court to fix time.

123.-(1) Notwithstanding that a judgment or an order requiring a person to do an act specifies the time within which that act is to be done, the Court may, on such terms as it thinks just, make an order requiring the act to be done within such time as may be specified therein.

(2) Where a judgment or an order requiring a person to do an act does not specify the time within which the act is to be done,the Court shall have the power subsequently to make an order requiring the act to be done within such time as may be specified therein.

Execution by or against person not being a party.

124.-(1) Any person, not being a party to a cause or matter, who obtains an order or in whose favour an order is made, shall be entitled to enforce obedience to the order by the same process as if he were a party in the cause or matter.

(2) Any person, not being a party to a cause or matter, against whom obedience to any judgment or order may be enforced, shall be liable to the same process for enforcing obedience to the judgment or order as if he were a party in the cause or matter.

PART TWENTY
EXECUTION OF DECREES AND ORDERS BY ATTACHMENT

Modes of paying money under decree.

125. All money payable under a decree shall be paid as follows;

(a) into the court whose duty is to execute the decree to which notice of such payment shall be given to the decree holder;

(b) out of court to the decree holder to which the decree holder shall certify such payment or adjustment to the court and the court shall record the same accordingly; or

(c) as the court which made the decree directs otherwise.

Immovable property situate in more than one jurisdiction.

126. Where immovable property situate within the local limits of the jurisdiction of two or more courts, any one of such courts may attach and sale the entire estate.

Procedure where court desires that its own decree to be executed by another court.

127.-(1) Any court sending a decree for execution shall send:

(a) a copy of the decree;

(b) location of that property; and

(c) a copy of any other order, if any.

(2) The court to which a decree is so sent shall cause such decree to be executed, without any further proof of the decree or order for execution, unless the court, for any special reasons to be recorded under the hand of Kadhi or Magistrate.

(3) Where such copies are so filed the decree or order may be executed in the same manner as if it had been passed by such court in the exercise of its original civil jurisdiction,

Application for execution.

128.-(1) Where a decree holder desires to execute it, he shall apply to the court which passed the decree or to the Registrar.

(2) Every application for the execution of a decree shall be in writing, signed and verified by the applicant or by some other person proved to the satisfaction of the court to be acquainted with the facts of the case, and shall contain in a tabular form the following particulars, namely:

(a) the number of the suit;

(b) names of the parties;

(c) the date of the decree;

(d) whether any appeal has been preferred from the decree;

(e) whether any payment or other adjustment of the matter in controversy has been made between the parties subsequently to the decree;

(f) whether any previous applications have been made for the execution of the decree, the dates of such applications and their results;

(g) the amount due upon the decree, or other relief granted thereby, together with particulars of any cross decree, whether passed before or after the date of the decree sought to be executed;

(h) the amount of the costs (if any) awarded;

(i) the name of the person against whom execution of the decree is sought; and

(j) the mode in which the assistance of the court is required; whether:

(i) by delivery of any property specifically decree;

(ii) by the attachment and sale, or by the sale without attachment of any property;

(iii) by the appointment of a receiver; or

(iv) otherwise, as the nature of the relief granted may require.

(3) The court to which an application is made may require the applicant to produce a certified copy of the decree.

(4) Where there is a pending appeal or intention to appeal, the court may, on considering the nature of the claim stay execution.

129. Where application is made for attachment of any movable property belonging to a judgment debtor, it shall contain the following: Application to contain description of the property.

(a) a description of such property sufficient to identify the same and, in case such property can be identified by boundaries or numbers in a record of settlement or survey, a specification of such boundaries or numbers; and

(b) a specification of the judgment debtor's share or interest in such property to the best of the belief of the applicant, and so far as he has been able to ascertain the same.

130.-(1) The Court to which a decree has been sent for execution shall, upon sufficient cause being shown, stay the execution of such decree for a reasonable time to enable the judgment debtor to apply to the court by which the decree was passed. Stay of execution.

(2) Before making an order to stay execution, the court may require such security from, or impose such conditions upon the judgment debtor as it thinks fit.

(3) Any order of the court by which the decree was passed, or of such appellate court as aforesaid, in relation to the execution of such decree, shall be binding upon the court to which the decree was sent for execution.

PART TWENTY ONE
MISCELLANEOUS PROVISIONS

131. Where at any stage of the case there is a written or oral request from any party for the purpose of preventing injustice, the Court may make any order as may be necessary to prevent injustice or to prevent an abuse of the process of the Court. Power of the Court to make order to prevent injustice.

132. In the event of a lacunae or where any matter is not expressly provided for in these Rules, the Court shall subject to Islamic shariah, adopt rules concerning such a matter under Civil Procedure Rules of the Laws of Zanzibar. In case of lacunae.

133. The Chief Justice may from tme to time amend or alter these Rules as he deems necessary. Amendment of rules.

SCHEDULE

KC. Form I

Plaint
(Made under rule 5(1))

IN THE DISTRICT KADHIS COURT OF……...
HELD AT….....…
CASE NUMBER ..... OF .....

Between

A.B ..... Plaintiff

Versus

C.D ..... Defendant

PLAINT

The above named plaintiff states as follow:

1. That, A.B is……., male/female, adult, Muslim and resident of ..... and his/her address for services is .....
2. That, C.D is……., male/female, adult, Muslim and resident of ..... and his/her address for services is .....
3. That, the plaintiff states that…….....……..
   (Facts showing particulars of the case and the cause of action).
   (a) …….....…
   (b) ……...…..
   (c) …….....…
   (d) …….....…
4. That the court has jurisdiction to entertain such matter.

WHEREFORE the Plaintiff prays as follows:

(a) The Honorable Court enters judgment and decree in favor of the Plaintiff.

(b) Costs of the suit to be borne by the Defendants.

(c) Any other relief and, or ordered as the same deem fit and just to grant.

Dated at ..... day of....., 20.....

.....
(Plaintiff)
Signature

Verification

I, …….…….....……..… being the plaintiff do hereby verify that all what is stated herein from paragraph 1 to ……is true to the best of my knowledge and understanding.

Dated at..... day of....., 20.....

.....
(Plaintiff)
Signature

Presented for filing this …….....……..

…….
COURT CLERK

Drawn by:

…….....
PLAINTIFF/VAKIL/ADVOCATE

KC. Form II

Written Statement of Defence
[Made under rule 7(3)]

IN THE DISRICT KADHIS COURT OF……...
HELD AT….....…
CIVIL CASE No. ..... OF .....

Between

A.B ..... Plaintiff

Versus

C.D ..... Defendant

A WRITTEN STATEMENT OF DEFENCE

The above named defendant states as follow;

1. That, the defendant admits that (set out the facts).
2. That, the defendant admits or denies that (set out the facts).
3. That, the Court has jurisdiction/ no jurisdiction to hear the suit on the ground that ……. (set out the grounds).

WHEREFORE the defendant prays as follows:

4. The Honourable Court enters judgment and decree in favor of the defendant.
5. Costs of the suit to be borne by the plaintiff.
6. Any other relief or orders as the same deem fit and just to grant.

Dated at..... day of .....20.....

.....
(Defendant)
Signature

Verification

I, ……..…… being the defendant do hereby verify that all what is stated herein above in paragraphs…….and ……is true to the best of my knowledge and understanding.

Dated at ..... day of ..... 20.....

.....
(Defendant)
Signature

Presented for filing this …….....……..

……...…….
COURT CLERK

Drawn by:

…….....
DEFENDANT/VAKIL/ADVOCATE

KC. Form III

Summons
[Made under rule 17(1)]

IN THE DISTRICT KADHIS COURT OF……...
HELD AT…….
CIVIL CASE No. ..... OF .....

Between

A.B.....Plaintiff

Versus

C.D.....Defendant

TO:

.....
.....
.....

NOTICE is hereby given that the above suit has been fixed for hearing .... on the ..... day of ..... before the .....

You are therefore required to appear before this Court either in person or by a pleader duly instructed on your behalf, on the day aforementioned at..... ..... oclock in the forenoon or as soon thereafter as far as the case can be called and as the day fixed for your appearance is appointed for the final disposal of the suit. You must be prepared to produce on that day all the witnesses upon whose evidence and all the documents upon which you intend to reply.

Take further notice that, in default of your appearance as stated above on the aforesaid day of hearing the suit will be heard and determined in your absence.

Given under my hand and Seal of the Court this ..... day of ..... 20.....

.....
District Kadhi/Registrar of Kadhi's Court

KC. Form IV

Appointment of Recognized Agent

[Made under rule 37(1)]

POWER OF ATTORNEY

THIS POWER OF ATTORNEY created this……....day of…..….20….... by …… of P.O. Box…..…….. (hereinafter called **"the Donor"**).

WHEREAS, I have a claim against ..... in respect of .....

AND WHEREAS, due to .....(give reasons) it is impractical for me to appear in court to litigate my claim.

THEREFORE, I ..... of ..... a holder of ID. No..... do hereby appoint and nominate .... of ..... a holder of ID. No..... to be my true and Lawful Attorney/Agent/Representative, (hereinafter referred to as the Donee) and in my name to do all or any of the following acts and things: *(state the powers of the appointed attorney).*

1. .....
2. .....
3. .....
4. ..... and
5. To do any other act to which in the absence of this power of attorney, I were supposed to do it myself.

AND I …….. hereby **AGREE** to ratify whatsoever my said attorney shall lawful do or cause to be done by virtue of this deed.

I.....do hereby agree to act as Agent/representative/ Attorney of ..... as per this deed.

.....

Agent/Representative/Attorney

IN WITNESS WHEREOF the said Donor and Donee have executed these present in the manner and on the aforesaid.

SWORN at……. by the said …… who is known to me personally/identified to me by ……..on this……..day of…...20…. .

……..……..
DONOR

BEFORE ME:
.....

…….....……
COMMISSIONER FOR OATHS

BEFORE ME:

Name :

SWORN at……. by the said …… who is known to me personally/identified to me by ……..on this……..day of….....20…... .

…….
DONEE

BEFORE ME:
.....
…….....……
COMMISSIONER FOR OATHS

Presented for filing this ……..…. day of ……..…..., 20…...

.....
Registry Officer

DRAWN AND FILED BY:

……..
P.O. Box…...……..….
……..……..…..
……...……..

KC. Form V
Application to sue or defend as a poor person
[Made under Rule 66(2)]

IN THE DISTRICT KADHIS COURT OF……...
HELD AT…….
CIVIL APPLICATION NO.....OF.....

Between

A.B ..... Applicant

Versus

C.D ..... Respondent

CHAMBER SUMMONS

(Made under……..……..of the …….
and all other enabling provisions of the law)

LET ALL PARTIES CONCERNED appear before the Honorable Court in chambers on the…….. day of ……..……, 20… at ……. in the morning thereafter when counsel for the applicant shall be heard on an Application for the order namely:

1. That, this honorable court be pleased to grant the applicant a leave to sue/ defend as a poor person.
2. That, this honorable court be pleased to grant any other order that may deem fit to grant.
3. Costs of this Application.

This chamber summons has been taken by the applicant herein and supported by the affidavit annexed hereto, to be read during the hearing of this application and on other grounds to be adduced during the hearing of this application

GIVEN under my **HAND** and **SEAL** of the Court this……day of……..…20…..

Presented for filing this ……..…. day of ……..…..….. 20….

……...…..
REGISRAR OFFICE

DRAWN AND FILED BY:

IN THE DISTRICT KADHI'S COURT OF……...
HELD AT…….
CIVIL APPLICATION NO . .....OF.....

Between

A.B ..... Applicant

Versus

C.D ..... Respondent

AFFIDAVIT

I…….... adult, male/female muslim, of .....
DO HEREBY solemnly swear and state as follows:

1. **THAT,** I am the deponent and therefore conversant with the facts I am about to depose

2. **THAT,** I work as…….(state your occupation)

3. **THAT,** on……(state the facts)

4. **THAT,** in order to set down this case for hearing, it is necessary that this honorable Court allows me to sue/defend as a poor person…….(make a declaratory statement)

5. **THAT,** I am unable to pay for the court fees because…….(set out the grounds or reasons)

Dated at …… this ….....… day of ……......, 20…….

……
DEPONENT

Verification

I, ……..……. being the applicant in this application do hereby solemnly verify that what I stated herein above in paragraphs…..…….. and…….are true to the best of my knowledge and belief.

Verified at …… this ……day of ……......., 20…….

SWORN at……. by the said …… who is known to me personally/identified to me by ……..on this……..day of…...20…. .

BEFORE ME:

.....

……

COMMISSIONER FOR OATHS

……

DEPONENT

Presented for filing this ……..…. day of ……....., 20….

.....

Registry Officer

DRAWN AND FILED BY:

……..

P.O. BOX…….

……..

……..

SIGNED on this 5th day of October, 2021

.....

(HON. OMAR OTHMAN MAKUNGU)

CHIEF JUSTICE

ZANZIBAR.

Printed by Zanzibar Government Printing Press Agency Sh. 5,000/=